

present liberties have been established, by these generous theories. There have been three periods in the history of England, in which the principles of government have been anxiously studied, and very valuable productions published, which at this day, if they are not wholly forgotten in their native country, are perhaps more frequently read abroad than at home.—The first of these periods was that of the Reformation, as early as the writings of Machiavel himself, who is called the great restorer of the true politics. “The Shorte Treatise
 “ of Politicke Power, and of the true Obedience
 “ which Subjects owe to Kyngs and other civile Governours, with an Exhortation to all true natural
 “ Englishemen, compyled by John Ponnet, D. D.” was printed in 1556, and contains all the essential principles of liberty, which were afterwards dilated on by Sidney and Locke. This writer is clearly for a mixed government, in three equiponderant branches, as appears by these words, p. 7. “In
 “ some countreyes they were content to be governed, and have the laws executed, by one
 “ king or judge; in some places by many of the
 “ best sorte; in some places by the people of the
 “ lowest sorte; and in some places also by the
 “ king, nobilitie, and the people all together.
 “ And these diverse kyndes of states, or policies, had their distincte names; as where one ruled, a
 “ monarchie; where many of the best, aristocratie; and where the multitude, democratie;
 “ and where all together, that is a king, the nobilitie, and commons, a mixte state; and which
 “ men by long continuance have judged to be the
 “ best sort of all: for where that mixte state was
 “ exercised, there did the commonwealthe longest
 “ continue.”—The second period was the Interregnum, and indeed the whole interval between

1640 and 1660. In the course of those twenty years, not only Ponnet and others were reprinted, but Harrington, Milton, the *Vindiciæ contra Tyrannos*, and a multitude of others, came upon the stage.—The third period was the Revolution in 1688, which produced Sidney, Locke, Hoadley, Trenchard Gordon, Plato Redivivus, who is also clear for three equipollent branches in the mixture, and others without number. The discourses of Sidney were indeed written before, but the same causes produced his writings and the Revolution.—Americans should make collections of all these speculations, to be preserved as the most precious relics of antiquity, both for curiosity and use. There is one indispensable rule to be observed in the perusal of all of them; and that is, to consider the period in which they were written, the circumstances of the times, and the personal character as well as the political situation of the writer. Such a precaution as this deserves particular attention in examining a work, printed first in the *Mercurius Politicus*, a periodical paper published in defence of the commonwealth, and reprinted in 1656, by Marchamont Nedham, under the title of “The Excellency of a free State, or the right Constitution of a Commonwealth.” The nation had not only a numerous nobility and clergy at that time disgusted, and a vast body of the other gentlemen, as well as of the common people, desirous of the restoration of the exiled royal family, but many writers explicitly espoused the cause of simple monarchy and absolute power: among whom was Hobbes, a man, however unhappy in his temper, or detestable for his principles, equal in genius and learning to any of his contemporaries. Others were employed in ridiculing the doctrine, that laws, and not men,

should govern. It was contended, that to say
 “ that laws do or can govern, is to amuse our-
 “ selves with a form of speech, as when we say
 “ time, or age, or death, does such a thing.
 “ That the government is not in the law, but in
 “ the person whose will gives a being to that law.
 “ That the perfection of monarchy consists in go-
 “ verning by a nobility, weighty enough to keep
 “ the people under, yet not tall enough, in any
 “ particular person, to measure with the prince;
 “ and by a moderate army, kept up under the
 “ notion of guards and garrisons, which may be
 “ sufficient to strangle all seditions in the cradle;
 “ by councils, not such as are co-ordinate with
 “ the prince, but purely of advice and dispatch,
 “ with power only to persuade, not limit, the
 “ prince’s will*.” In such a situation, writers on
 the side of liberty thought themselves obliged to
 consider what was then practicable, not abstractedly
 what was the best: they felt the necessity of
 leaving the monarchical and aristocratical orders
 out of their schemes of government, because all
 the friends of those orders were their enemies, and
 of addressing themselves wholly to the democrati-
 cal party, because they alone were their friends;
 at least there appears no other hypothesis on
 which to account for the crude conceptions of
 Milton and Nedham. The latter, in his preface,
 discovers his apprehensions and feelings, too
 clearly to be mistaken, in these words: “ I be-
 “ lieve none will be offended with this following
 “ discourse, but those that are enemies to public
 “ welfare: let such be offended still; it is not for
 “ their sakes that I publish this ensuing treatise,

* See the political pamphlets of that day, written on the side of monarchy.

“ but for your sakes that have been *noble patriots*,
 “ *fellow-soldiers* and *sufferers* for the liberties and
 “ freedoms of your country.” As Mr. Turgot’s
 idea of a commonwealth, in which all authority
 is to be collected into one centre, and that
 centre the nation, is supposed to be precisely the
 project of Marchamont Nedham, and probably
 derived from his book, and as “ The Excellency of
 “ a free State” is a valuable morsel of antiquity well
 known in America, where it has many partisans,
 it may be worth while to examine it, especially as
 it contains every semblance of argument which
 can possibly be urged in favour of the system, as it
 is not only the popular idea of a republic both in
 France and England, but is generally intended by
 the words *republic*, *commonwealth*, and *popular state*,
 when used by English writers, even those of the
 most sense, taste, and learning.

Marchamont Nedham lays it down as a funda-
 mental principle, and an undeniable rule, “ that
 “ the people, that is, such as shall be successively
 “ chosen to represent the people, are the best
 “ keepers of their own liberties, and that for
 “ many reasons: First, because they never think
 “ of usurping over other men’s rights, but mind
 “ which way to preserve their own.”

Our first attention should be turned to the pro-
 position itself, “ The people are the best keepers
 “ of their own liberties.” But who are the peo-
 ple? “ Such as shall be successively chosen to re-
 “ present them.”—Here is a confusion both of
 words and ideas, which, though it may pass with
 the generality of readers in a fugitive pamphlet,
 or with a majority of auditors in a popular har-
 rangue, ought, for that very reason, to be as
 carefully avoided in politics as it is in philosophy
 or mathematics. If by the people is meant the